

# FILING CHECKLIST -- MSC ORIGINAL ACTION: PETITION FOR SUPERINTENDING CONTROL

This checklist is for Andrew's internal use only. DO NOT file this document with the Court.

## 1. PRE-FILING CHECKLIST -- ARE ALL DOCUMENTS COMPLETE?

| [ ] | #  | Document                                 | Status                                           | Notes |
|-----|----|------------------------------------------|--------------------------------------------------|-------|
| [ ] | 01 | Petition for Superintending Control      | Fill in [ANDREW_REQUIRED] fields                 |       |
| [ ] | 02 | Brief in Support of Petition             | Fill in all [ANDREW_REQUIRED] fields             |       |
| [ ] | 03 | Affidavit of Andrew J. Pigg              | Fill in [ANDREW_REQUIRED] fields + get NOTARIZED |       |
| [ ] | 04 | Appendix and Exhibit                     | Physically assemble all exhibits A-J             |       |
| [ ] | 05 | Proposed Order of Superintending Control | Ready to go for accuracy                         |       |
| [ ] | 06 | Proof of Service                         | Complete AFTER service is performed              |       |
| [ ] | 07 | Motion to Waive Fees and Costs           | Fill in [ANDREW_REQUIRED] financial fields       |       |
| [ ] | -- | SCAO Form MC 20                          | Download, complete, sign (attach to Doc 07)      |       |
| [ ] | 08 | Cover Letter                             | Fill in date; verify document list               |       |
| [ ] | 09 | Filing Checklist (this document)         | only -- DO NOT FILE                              |       |

## 2. [ANDREW\_REQUIRED] FIELDS TO COMPLETE

Search all documents for [ANDREW\_REQUIRED] before filing. Every placeholder must be filled:

### Affidavit (Doc 03)

| Field                                  | What to Fill In                                   |
|----------------------------------------|---------------------------------------------------|
| Ex parte proceeding dates/descriptions | Specific dates and details of ex parte proceeding |
| Job loss details                       | Employer names, positions, approximate dates      |
| Home loss details                      | Addresses and approximate dates for 2+ homes      |

### Fee Waiver (Doc 07) + MC 20 Form

| Field                | What to Fill In                                   |
|----------------------|---------------------------------------------------|
| Monthly gross income | Your current gross monthly income                 |
| Monthly net income   | Your current net monthly income                   |
| Total liquid assets  | Bank accounts + cash on hand                      |
| Monthly expenses     | Rent, utilities, food, transportation, medical    |
| Total debts          | All outstanding debts and obligations             |
| Public assistance    | Any government assistance (food stamps, Medicaid) |
| Number of dependents | How many people depend on you for support         |

## 3. DOCUMENT ASSEMBLY ORDER (PER MCR 7.304 / 7.312)

Assemble in this exact order:

| Order | Document                                     | Special Instructions                          |
|-------|----------------------------------------------|-----------------------------------------------|
| 1st   | Cover Letter (Doc 08)                        | On top -- not bound with filings              |
| 2nd   | Petition for Superintending Control (Doc 01) | RED COVER required per MCR 7.312(A)           |
| 3rd   | Brief in Support (Doc 02)                    | Immediately after petition                    |
| 4th   | Affidavit of Andrew J. Pigors (Doc 03)       | Must be NOTARIZED before filing               |
| 5th   | Appendix and Exhibit Index (Doc 04)          | Tabbed exhibits A-J; may bind separately if > |
| 6th   | Proposed Order (Doc 05)                      | Separate from brief/petition                  |
| 7th   | Motion to Waive Fees and Costs (Doc 07)      | With MC 20 form attached                      |
| 8th   | Proof of Service (Doc 06)                    | Complete after serving all parties            |

#### 4. RED COVER PAGE REQUIREMENT

MCR 7.312(A): Original proceedings (including petitions for superintending control) require a RED cover page.

- [ ] Obtain red card stock paper
- [ ] Print cover page with:
- "STATE OF MICHIGAN -- IN THE SUPREME COURT"
- Case caption (Pigors v. 14th Judicial Circuit Court)
- "PETITION FOR ORDER OF SUPERINTENDING CONTROL"
- MSC Case No. (leave blank for assignment)
- Lower Court Case Nos.: 2024-001507-DC; 2023-5907-PP
- COA Case No.: 366810
- Petitioner's name and contact information

#### 5. COPY COUNT

MCR 7.302(B): Original + 8 copies = 9 total sets (for mail/hand delivery filing)

| Set | Purpose                                       |
|-----|-----------------------------------------------|
| 1   | Original -- filed with the Court              |
| 2-9 | 8 copies -- for the Justices                  |
| 10  | Service copy -- Hon. Jenny L. McNeill         |
| 11  | Service copy -- Emily A. Watson               |
| 12  | Service copy -- Pamela Rusco (FOC)            |
| 13  | Service copy -- Michigan Court of Appeals (Cl |
| 14  | Service copy -- 14th Circuit Court (Clerk)    |
| 15  | YOUR copy -- retain for your records          |

Total sets needed: 15 (9 for MSC + 5 service copies + 1 personal copy)

If filing via TrueFiling (electronic), only 1 electronic copy is needed for the Court. Still need 5 physical service copies.

## 6. FILING METHODS (CHOOSE ONE)

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### Option A: TrueFiling (Electronic Filing -- Preferred)

| Step | Action                                                                          |
|------|---------------------------------------------------------------------------------|
| 1    | Navigate to <a href="https://www.truefiling.com">https://www.truefiling.com</a> |
| 2    | Create account or log in                                                        |
| 3    | Select: Michigan Supreme Court                                                  |
| 4    | Select: New Case (original action)                                              |
| 5    | Filing Type: Petition for Order of Superinten                                   |
| 6    | Convert all .md documents to PDF (md -> docx                                    |
| 7    | Upload all documents in assembly order (see S                                   |
| 8    | Attach MC 20 fee waiver OR pay \$375 filing fe                                  |
| 9    | Submit and save confirmation receipt                                            |

### Option B: Mail Filing

| Step | Action                                         |
|------|------------------------------------------------|
| 1    | Print all documents: original + 8 copies (9 t  |
| 2    | Assemble each set in order per Section 3       |
| 3    | Place RED cover on the Petition in each set    |
| 4    | Include completed MC 20 form OR check for \$37 |
| 5    | Mark envelope: "EMERGENCY -- CHILD WELFARE MA  |
| 6    | Mail to: Clerk of the Court, Michigan Supreme  |
| 7    | Send via Certified Mail, Return Receipt Reque  |
| 8    | Retain tracking number and receipt             |

### Option C: Hand Delivery

| Step | Action                                       |
|------|----------------------------------------------|
| 1    | Print all documents: original + 8 copies     |
| 2    | Bring to: Hall of Justice, 925 W. Ottawa St, |
| 3    | File at the Clerk's office (MSC Clerk)       |
| 4    | Request a file-stamped copy for your records |
| 5    | Pay \$375 or present MC 20 fee waiver        |

## 7. FILING FEE

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| Item            | Amount              |
|-----------------|---------------------|
| MSC Filing Fee  | \$375.00            |
| Fee Waiver Form | SCAO Form MC 20     |
| Payable to      | "State of Michigan" |

- ☐ Complete MC 20 form (download from: <https://courts.michigan.gov/siteassets/forms-records/scao-approved/mc20.pdf>)
- ☐ Attach MC 20 to Motion to Waive Fees (Doc 07)
- ☐ If fee waiver is denied, be prepared to pay \$375

## 8. SERVICE REQUIREMENTS

Serve all 5 parties within 7 days of filing:

| # | Recipient                   | Address                              | Method              |
|---|-----------------------------|--------------------------------------|---------------------|
| 1 | Hon. Jenny L. McNeill       | 990 Terrace St, Muskegon, MI 49442   | Certified Mail, RRR |
| 2 | Emily A. Watson             | 2160 Garland Drive, Norton, MI 49444 | Certified Mail, RRR |
| 3 | Pamela Rusco (FOC)          | 990 Terrace St, Muskegon, MI 49442   | First Class Mail    |
| 4 | MI Court of Appeals (Clerk) | 925 W. Ottawa St, Lansing, MI 48901  | First Class Mail    |
| 5 | 14th Circuit Court (Clerk)  | 990 Terrace St, Muskegon, MI 49442   | First Class Mail    |

Service steps:

- ☐ Make 5 complete sets of all filed documents
- ☐ Address and stamp 5 envelopes
- ☐ Use Certified Mail (Return Receipt Requested) for McNeill and Watson
- ☐ Drop at USPS on the same day as filing (or before)
- ☐ Save all tracking numbers and receipts
- ☐ Complete the Proof of Service (Doc 06) with dates and tracking numbers
- ☐ When green cards come back, store them with your file copy

## 9. POST-FILING STEPS

| <input type="checkbox"/> | Action                                            | When                               |
|--------------------------|---------------------------------------------------|------------------------------------|
| <input type="checkbox"/> | Save TrueFiling confirmation OR file stamp        | Day of filing                      |
| <input type="checkbox"/> | Complete all service and retain proof (Doc 06)    | Day of filing                      |
| <input type="checkbox"/> | Call MSC Clerk to confirm receipt and dates       | Day of filing or next business day |
| <input type="checkbox"/> | Calendar: Watch for MSC case number               | Within 2 weeks                     |
| <input type="checkbox"/> | Calendar: Watch for MSC order (may be MSC)        | Per MSC timeline                   |
| <input type="checkbox"/> | Notify COA Case 366810 of MSC filing (if not)     | Within 7 days                      |
| <input type="checkbox"/> | Prepare for potential MSC order to show MSC order | Per MSC                            |
| <input type="checkbox"/> | Store all filing proof artifacts securely         | Ongoing                            |

## 10. KEY CONTACT INFORMATION

| Contact | Phone | Address |
|---------|-------|---------|
|---------|-------|---------|

|                      |                |                                                                                                           |
|----------------------|----------------|-----------------------------------------------------------------------------------------------------------|
| MSC Clerk's Office   | (517) 373-0120 | P.O. Box 30052, Lansing, MI 48909                                                                         |
| MSC Physical Address | --             | 925 W. Ottawa St, Lansing, MI 48915                                                                       |
| TrueFiling           | --             | <a href="https://www.truefiling.com">https://www.truefiling.com</a>                                       |
| MiFILE               | --             | <a href="https://mifile.courts.michigan.gov">https://mifile.courts.michigan.gov</a>                       |
| SCAO                 | (517) 373-0130 | 925 W. Ottawa St, P.O. Box 30048, Lansing, MI                                                             |
| MC 20 Form           | --             | <a href="https://courts.michigan.gov/siteassets/forms-">https://courts.michigan.gov/siteassets/forms-</a> |

## 11. CRITICAL REMINDERS

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- ☐ RED COVER on the Petition -- required for original proceedings (MCR 7.312(A))
- ☐ NOTARIZE the Affidavit (Doc 03) before filing
- ☐ COMPLETE MC 20 -- the fee waiver won't work without the financial affidavit form
- ☐ FILL ALL [ANDREW\_REQUIRED] FIELDS -- search every document before filing
- ☐ SERVE ALL 5 PARTIES -- missing service can delay or invalidate the filing
- ☐ KEEP COPIES OF EVERYTHING -- every document filed, every receipt, every tracking number
- ☐ L.D.W. INITIALS ONLY -- never use the child's full name in any filed document (MCR 8.119(H))
- ☐ Ron Berry is NOT an attorney -- do not serve him as counsel for Watson. He is Emily's boyfriend/domestic partner.
- ☐ Jennifer Barnes (P55406) WITHDREW -- verify Watson's current counsel via MiFILE before service

Last reviewed: [Date]

Filing package location:

C:\Users\andre\LitigationOS\01FILINGS\MSCORIGINALACTIONFINAL\

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